

GENERAL INFORMATION

Country name: Republic of North Macedonia

Organization or entity responsible for the preparation of the report: Ministry of Education and Science

I. INFORMATION ON THE LEGISLATIVE, JUDICIAL, ADMINISTRATIVE AND OTHER MEASURES TAKEN BY THE STATE AT THE NATIONAL LEVEL

1. Ratification of the Convention:

Is your country a State Party to the Convention?

☒ Yes

☐ No: **Does your country plan to ratify this instrument?**

☐ Yes: **Please indicate the stage of ratification process reached by your country:**

☐ Close to ratification

☐ Underway

☐ Actively under preparation

•• **Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:**

Describe:

>> *the obstacles, whether legal, institutional, political or practical*

>> *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. **Please explain why:**

2. Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education

Has your country ratified the Protocol?

☐ Yes

X No: **Please briefly explain the difficulties encountered:**

3. Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system

In case your country is a State Party to the Convention:

- **Is the Convention directly applicable in your country's domestic law following its ratification?**

X Yes ☐ No

- **If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?**

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- **Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?**

☐ Yes X No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other

3 http://portal.unesco.org/en/ev.php-URL_ID=15321&URL_DO=DO_TOPIC&URL_SECTION=201.html

competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- **Have legislative measures been taken pursuant to the Recommendation?**

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- **Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.**

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. INFORMATION ON THE IMPLEMENTATION OF THE CONVENTION OR RECOMMENDATION

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴*

1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/ Recommendation (please tick all that apply)⁵ (several items could be ticked/ mentioned):

- X Constitutional laws and/or legislation prohibit discrimination in education
- X Regulations prohibit discrimination in education
- X Policies and programmes aim to eliminate and prevent discrimination in education
- X Access to justice in case of violations of the right to non-discrimination in education
- X Combatting discrimination in terms of curriculum
- ☐ Other:

•• Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

➤ > *Non-discrimination in the admission of pupils to educational institutions*

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

- ➤ *Non-differential treatment, including of foreign nationals resident in your country*

The Law on Primary Education stipulates the following:

Every child has the right to free and quality primary education in a primary school (Article 3)

Primary education develops on the basis of the following principles: equality, availability, accessibility and inclusiveness (Article 4)

Protection from discrimination and promotion of equality (Article 5)

(1) Any direct or indirect discrimination, invoking or encouraging discrimination and assisting any discriminatory treatment on the grounds of sex, race, skin colour, national or ethnic origin, disability, gender, sexual orientation, gender identity, nationality, social background, education, religion or creed, political affiliation, other types of beliefs, age, family or marital status, property status, health condition and general status or any other ground stipulated by law or any international agreement which is ratified according to the Constitution of the Republic of North Macedonia in the realization of the rights from primary education, shall be prohibited in the primary education

(2) Any form and type of discrimination in primary education shall be prohibited, concerning the following:

- the educational process,
- the enrolment process for primary education,
- the availability of services and advantages, reasonable accommodation and accessibility to and within the buildings,
- the recruitment, career advancement and termination of employment,
- the student organization,
- the content of teaching programs and textbooks,
- the management of and participation in school organs and bodies,
- the financing of primary education and
- any other area of primary education.

(3) Prohibition of discrimination also refers to discrimination against students' parents i.e. guardians on any of the grounds from paragraph (1) of this Article.

(4) Staff in the primary schools shall be obligated to promote equality and fairness among all students and to actively confront all forms of discrimination and violence.

(5) Prohibition of discrimination also refers to discrimination against the primary school staff on any of the grounds from paragraph (1) of this Article.

(6) Prohibition of discrimination shall be ensured according to the regulation on prevention and protection from discrimination.

Affirmative measures (Article 6)

(1) Affirmative measures shall be applied in the primary education in order to

address discrimination and exclusion of children and adults.

(2) Affirmative measures from paragraph (1) of this Article are: non-application of the provision on school area partitioning for enrolment of students with disabilities, exemption from payment of charges for recognition and equivalence of foreign report cards, free transportation for students with disabilities, educational mediators, financial allowance for winning first prize at state competition, stimulation of participation and financial allowance for winning an award/medal at international competition.

Use of languages in education (Article 10)

(1) The educational work in a primary school shall be conducted in the Macedonian language and its Cyrillic alphabet.

(2) For students who are members of the communities whose language of instruction is other than the Macedonian language and its Cyrillic alphabet, the educational work shall be conducted in the language and alphabet of the respective community.

Inclusive education (Article 11)

(1) The institutional organization, staffing and content of primary education is ensured in a way that supports the inclusion of all children in the mainstream primary education.

(2) Inclusive education is a process that takes into account the diverse individual needs for development of students, by ensuring equal opportunities for exercising the fundamental human rights to development and quality education.

(3) Inclusive education from paragraph (2) of this Article shall entail changes and adjustments to the content, structures and strategies of the teaching process for students with disabilities, along with a common vision and conviction that the state is under the obligation to provide education to all children.

(4) Inclusion of all children in the mainstream primary education is defined according to the Concept for inclusive education, which is adopted by the Minister on proposal by the Bureau and is published on the websites of the Ministry of education and science (hereinafter: Ministry) and the Bureau.

(5) The infrastructure, individualized support, curriculum and program in primary education shall be reasonably accommodated to the individual needs of a student.

(6) Reasonable accommodation from paragraph (5) of this Article shall entail changing and adjusting the conditions for education in certain cases, which does not present disproportional or unnecessary burden for the school, and aims at ensuring the enjoyment or realization of all human right and freedoms of students with disabilities on an equal basis with others.

(7) Accessibility to infrastructure and services shall imply taking measures to ensure that students with disabilities have access, on equal basis with others, to the physical environment, transportation, information and communication, including the information and communication technologies and systems in a primary school.

Education of children who are foreign citizens or stateless children (Article 13)

(1) Children who are foreign citizens or stateless children, children refugees, asylum seekers, children with recognized refugee status, children under subsidiary protection and children under temporary protection and have residence in Republic of North Macedonia shall be entitled to primary education under

equal conditions as the children who are citizens of the Republic of North Macedonia.

(2) Learning of the Macedonian language and its Cyrillic alphabet and support for compensating the knowledge in certain subjects shall be organized for the children from paragraph (1) of this Article, for a period of at least one year according to programs designed by the Bureau and approved by the Minister.

Education for children who were not included in the teaching process (Article 14)

(1) Children who were not included in the teaching process and are above the age limit for enrolment in the respective grade in primary education, shall be entitled to primary education under equal conditions as other children.

(2) Adjusted curricula shall be designed for the children from paragraph (1) of this Article, in order to enable them to be included in the appropriate grade in primary education.

(3) The examination of the knowledge for the children from paragraph (1) of this Article, shall be carried out by the school before they are included in the educational process, based on instruments designed by the Bureau. Once their knowledge is examined, a certificate is issued to enrol the child in the appropriate grade in primary education.

(4) Adjusted curricula from paragraph (2) of this Article shall be designed by the Bureau and determined by the Minister.

(5) The Minister, on proposal by the Bureau, shall determine the format and content of the certificate from paragraph (3) of this Article.

The Law on Secondary Education stipulates the following:

Article 3

(1) Secondary education is compulsory for every citizen, under equal conditions determined by this law.

(2) Secondary education in public high schools is free.

(3) Discrimination based on gender, race, skin color, national or social origin, political and religious beliefs, property and social status is not permitted.

Use of languages in education (Article 4)

(1) The educational work in a secondary school shall be conducted in the Macedonian language and its Cyrillic alphabet.

(2) For students who are members of the communities whose language of instruction is other than the Macedonian language and its Cyrillic alphabet, the educational work shall be conducted in the language and alphabet of the respective community.

The Law on Higher Education stipulates the following:

Basic Principles of Higher Education (Article 3)

Respect for human rights and freedoms and ensuring the principles of equality and protection against discrimination;

Objectives of Higher Education (Article 4)

Respecting the human rights and freedoms and ensuring the principles of equality

and non-discrimination

Accessibility of Higher Education (Article 6)

(1) Nationals of the Republic of North Macedonia shall have the right under equal conditions to education in higher education institutions.

(2) Foreign nationals may, under the principle of reciprocity, receive education in higher education institutions in the Republic of North Macedonia under equal conditions as the nationals.

(3) Foreign nationals, without applying the principle of reciprocity, may receive education in higher education institutions in the Republic of North Macedonia under conditions more closely defined by the higher education institution.

(4) Stateless persons shall have the right to higher education under equal conditions as the nationals of the Republic of North Macedonia.

Student Rights and Responsibilities (Article 27)

Students of all levels of higher education that have no parents, or are blind, deaf, first- or second-category disabled, mother with children under six years of age and hospitalised Students shall have the right to special conveniences stipulated in the Statute of the higher education institution.

Exemption from Co-payment (Article 128)

(1) The public higher education institution shall not charge co-payment to the following:

- Persons without parents under the age of 26, if they are unemployed;
- Persons with disabilities, in accordance with a Decree adopted by the Government, upon a proposal of the National Council;
- Disabled war veterans;
- Persons raised in foster care homes for abandoned children, if they are unemployed; and
- Other persons, as defined in the Government Decree adopted upon a proposal of the National Council.

(2) The co-payment funds for these persons shall be covered by the Budget of Republic of North Macedonia.

Study Enrolment Method (Article 149)

The university, or the autonomous higher vocational school, determines the procedure for selection of candidates for enrolment in a manner that guarantees equality of all candidates irrespective of race, colour, gender, language, religion, political or other belief, ethnic, national or social origin, property, birth, social status, disability, sexual orientation and age.

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

X Constitutional laws and/or legislation guarantee equal access to education

X Regulations ensure equal access to all levels and types of education

X Policies and programmes ensure equal access to all levels and types of education

☐ Other:

•• Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b,

Law on primary education (measures described in details in answer 1.1 and 1.3)
Law on secondary education (measures described in details in answer 1.1 and 1.3)
Law on higher education (measures described in details in answer 1.1 and 1.3)
Concept on Inclusive Education

The primary school is obligated, within three days from the end of the previous month, to notify the authorized municipal education inspector or the state education inspector in municipalities without authorized education inspector about all children who were not enrolled in first grade until 20 June, and about students with unexcused absence from school longer than one month.

The school is obligated to take activities to enrol the students who were not enrolled in primary school. These activities are as follows: home visits to families whose students are not enrolled, that is, students with unexcused absence from primary school for more than a month, cooperation with civil organizations that work on addressing discrimination, segregation and isolation, education for parents i.e. guardians, open day in the school.

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- X Providing financial incentives and fellowships
- X Providing positive or affirmative action measures
- X Ensuring inclusion in mainstream schools for all learners
- X Training teachers on inclusive education
- X Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET)

- 6 Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

- X Providing re-entry programmes for young mothers
- X Eliminating all barriers for pregnant girls or young mothers in education
 - ☐ Providing auxiliary assistance
- X Adapting education infrastructure
- X Adapting curricula and methods
- X Providing language classes to newcomers (e.g. refugees)
 - ☐ Eliminating administrative barriers to education⁷
- X Providing flexible learning pathways
- X Valuing diversity in schools
- X Combatting stereotyping and stigmatisation
 - ☐ Other:

- **Please elaborate further on the measures taken, including those to ensure gender equality and the empowerment of girls and women in and through education:**

Providing financial incentives and fellowships:

Scholarship Programs for Roma students (secondary and higher education)

Scholarship Programs for Socially Disadvantaged Students (secondary and higher education)

Scholarship Programs for students with disabilities (secondary and higher education)

Scholarship Programs for STEM (for higher education)

Conditional Cash Transfers (related to regular attendance of school)

Free transport for all students in primary and secondary education

Free textbooks for all students in primary and secondary education

Educational mediators. Educational mediators may be recruited for Roma students whose origin is from socially deprived families and/or have been outside the educational system for longer period of time. The educational mediator takes activities to enhance the outreach about the opportunities and access to schools, organize regular meetings to sensitize the population and the primary school staff about the specifics and needs of vulnerable groups with regard to education, cooperate on regular basis with professional associates and teachers about the improvement of student achievements, take activities to reduce student drop out of the educational process.

Educational/Teacher assistants and Personal assistants for children with disabilities in primary and secondary education

During the COVID 19 Pandemic several acts have been adopted by the Government to support the inclusion of all learners (including, the economically and socially marginalized):

- Decree for granting financial support to students coming from low-income

family households enrolled in public high schools, for purchase of school supplies;

- Providing free internet access for student from primary and secondary education from March to August 2020 (for distance learning, for more than 30.000 households);
- Decree for payment of the tuition fees for students, payment for accommodation in a dormitory or private accommodation for students, coming from low-income family;
- Decree for issuing vouchers to young people for digital skills training to improve their competitiveness on the labor market.

Providing positive or affirmative action measures:

All students are entitled to organized or free transport if the place of residence is at distance of at least two kilometres from the nearest school. Students with disabilities and their assistants shall be entitled to free accessible transport regardless of the distance and the accessibility of their place of residence to the school.

Beneficiaries of guaranteed minimal benefits are exempted from payments of costs in the recognition procedure (diplomas obtained abroad)

Parent i.e. guardian is entitled to enrol his/her child in a school in the area where they live or permanently reside. The schools are obligated to enrol the students from the respective area. These provisions however do not apply for children with disability and they can be enrolled in different area if the parent/legal guardian decides to.

Roma students can enrol in secondary education with 10% fewer points than their peers.

Ensuring inclusion in mainstream schools for all learners:

Described in answer 1.1. (Article 11,13 and 14 of the Law on Primary Education)

To support the learning of students with disabilities, the primary school shall provide: educational assistant, personal assistant, adequate professional support from the centre for supported learning, inclusion team and assistive technology according to recommendation of a professional body for assessment and in compliance with the individual educational plan or the modified program.

Each school is obliged to establish a school inclusion team, which is responsible for the inclusion policies and practices of the entire school and an inclusion team for a student that works according to individual educational plan or the modified curriculum. The school inclusion team shall design and implement the activities in the entire school and ensure that the activities are reconciled and applied in the educational work. The inclusion team for a student has a term for the period until the students completes education and focuses its work on concrete students and on the design and realization of their individual educational plans.

Training teachers on inclusive education:

A special e-training module on inclusive education was developed by the Bureau for Development of Education - BDE (responsible institution for teacher training in the country) together with UNICEF office in 2018. Continues trainings are organized by

the BDE for teachers on inclusive education

Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET):

In the academic year 2018/2019 the total number of students in higher education in STEM (public and private universities was 14.543 (female students 6.322 or 43.47%).

Source: State Statistical Office

http://www.stat.gov.mk/PrikaziPoslednaPublikacija_en.aspx?id=38

Out of the total number of scholarships granted by the Ministry of Education and Science for the academic year 2018/2019 for STEM sciences and medicine, 64% were granted to female students (464) and 36% for male students (256).

In the period 2013-2017, out of the total number of scholarship granted to female students in higher education (8.430), 52% (or 4.388) were to female students of STEM and medicine (compared to social sciences, humanities and fine arts).

Source: Statistical analysis of the Ministry of Education and Science

Providing re-entry programmes for young mothers:

Eliminating all barriers for pregnant girls or young mothers in education:

Article 27 of the Law on Higher Education stipulates that the students of all levels of higher education - mother with children under six years of age - shall have the right to special conveniences stipulated in the Statute of the higher education institution.

Adapting education infrastructure:

Adapting curricula and methods:

The infrastructure, individualized support, curriculum and program in primary education shall be reasonably accommodated to the individual needs of a student (Article 11 of the Law on Primary Education)

Teaching of students with disabilities in schools is realized according to Individual educational plan for the programs or modified program. An individual educational plan entails adaptation of the learning results within the program, and introduction of specific activities and methods which allows for achievement of the learning results. Modified program aimed for students with complex needs is designed for each educational cycle of education and specifies the learning results based on competencies which students should acquire and then develop their independence, personal growth and social relations. Programs for development of special skills are designed for certain categories of students with disabilities, such as: mobility and spatial orientation, learning the Braille alphabet, speech development, use of assistive technology for communication, etc.

Adjusted curricula are designed for the children who were not included in the teaching process and are above the age limit for enrolment in the respective grade in

primary education, in order to enable them to be included in the appropriate grade in primary education.

Additional classes are organized for students who need additional support in certain subjects to achieve the expected results, that is, on request of a student, his/her parent i.e. guardian or based on a teacher's assessment.

Providing language classes to newcomers (e.g. refugees):

Children who are foreign citizens or stateless children, children refugees, asylum seekers, children with recognized refugee status, children under subsidiary protection and children under temporary protection and have residence in Republic of North Macedonia shall be entitled to primary education under equal conditions as the children who are citizens of the Republic of North Macedonia.

Learning of the Macedonian language and its Cyrillic alphabet and support for compensating the knowledge in certain subjects shall be organized for the children from paragraph (1) of this Article, for a period of at least one year according to programs designed by the Bureau and approved by the Minister. (Article 13 of the Law on Primary Education)

Providing flexible learning pathways:

Children who were not included in the teaching process and are above the age limit for enrolment in the respective grade in primary education, are entitled to primary education under equal conditions as other children. Adjusted curricula are designed in order to enable them to be included in the appropriate grade in primary education. According to the adjusted curricula the pupils can pass two school years in one year

Valuing diversity in schools:

Combatting stereotyping and stigmatization:

Promotion of multiculturalism/interculturalism and interethnic integration (Article 46 of the Law on Primary Education)

The school director shall establish a school integration team. The school integration team shall plan and organize activities that contribute towards respect for multiculturalism and development of intercultural dialogue/interaction and promotion of interethnic integration. The school integration team, in cooperation with teachers, shall design a mandatory plan of activities that will be also planned in the annual work program of the school for promotion of interculturalism, recognition of similarities, embracing diversities, and addressing stereotypes and prejudices.

Gender equality and the empowerment of girls and women in and through education

Net enrollment rate in primary education for the school year 2017/2018 is 92.97% (female 93.3%). Source: State Statistical Office
http://www.stat.gov.mk/PrikaziPoslednaPublikacija_en.aspx?id=42

Net enrollment rate in secondary education for the school year 2017/2018 is 69.63% (female 68.66%). Source: State Statistical Office
http://www.stat.gov.mk/PrikaziPoslednaPublikacija_en.aspx?id=42

The drop-out rate for the school year 2016/2017 was 0.2% for female pupils and 0.13 for male pupils in primary education; 0.59% for female pupils and 0.89 for male pupils in secondary education
<http://www.stat.gov.mk/Publikacii/Gender2019.pdf>

In the academic year 2018/2019 the gross enrolment rate in higher education was 34.26% (female students 40.07%). The net enrolment rate was 26.49% (female students 31.46%)
http://www.stat.gov.mk/PrikaziPoslednaPublikacija_en.aspx?id=38

- **Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):**

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

X Yes ☐ No

- **Please provide reference to the relevant laws and provisions:**

The Law on Family stipulates that the minimum age for marriage is 18 years.

Additionally the new Law on Primary Education (from August 2019) – Article 97 stipulates that when changes in datasets occur, that is, the reason why a student left the educational process is determined, in particular, when a student enters an extramarital union, the school shall be obligated to notify the competent Centre for social work, the State Education Inspectorate and the responsible education officer in the municipality within three days from the day the parent i.e guardian reported the change so that action can be taken in accordance with law.

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/ Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

Is compulsory and free of charge pre-primary education available in your country?

- ☐ Pre-primary education is compulsory: **Please provide the age of enrolment and duration:**

- ☐ Pre-primary education is free of charge for all: **Please provide the duration:**

Pre-primary education is not free of charge. However the parents/guardians contribute with a smaller amount of money (around 25 EUR per month) usually used for nutrition purposes. All other costs are covered by the State

- **Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.**

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

- 8 Which states that "ECCE is part of the right to education and the main foundation for holistic human development".

Primary education

Is primary education compulsory in your country?

X Yes ☐ No

- **Please indicate the current duration period of compulsory education and the age of enrolment:**

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

Primary Education is compulsory and lasts 9 (nine) years

A parent i.e. guardian is obligated to enroll a child, who turns 6 years of age by the end of the calendar year, in the first grade of primary school (the school year starts in September, the enrollment process is in May)

As exception a child can be enrolled in the first grade if he/she turns six by 31 January in the following year, based on previous request from a parent i.e. guardian and obtained opinion from the school pedagogue or psychologist.

Net enrollment rate for primary education for the school year 2017/2018 is 92.97% (female 93.3%). Source: State Statistical Office
http://www.stat.gov.mk/PrikaziPoslednaPublikacija_en.aspx?id=42

Is primary education available free of charge to all?

X Yes: **Please provide the duration and indicate the extent to which it is.**

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

Primary Education is free of charge to all during the whole nine years.

The Law on Primary Education stipulates the following:

Right to primary education (Article 3)

(1) Every child has the right to free and quality primary education in a primary school.

- Right to free transport (Article 73)

(1) The student shall be entitled to organized or free transport if the place of residence is at distance of at least two kilometers from the nearest school.

(2) Students with disabilities and their assistants shall be entitled to free accessible transport regardless of the distance and the accessibility of their place of residence to the primary school.

No tuition fees, exam fees, schools supplies, transport costs or compulsory levies on parents are charged. Only couple of municipalities in the country have uniforms and they provide one pair of the uniform for the children.

The Law on Textbooks in Primary and Secondary Education stipulates the following:

Textbooks in primary and secondary schools are free of charge for all students (Article 6)

☐ **No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?**

☐ Yes

☐ No

•• **Please briefly provide information on the reforms taken:**

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

Is secondary education (middle/high) available free of charge?

X Yes: **Please provide the duration and describe the extent to which it is.**

11

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

Secondary Education is compulsory and free of charge to all.

The Law on Secondary Education stipulates the following:

Article 3

- (1) Secondary education is compulsory for all citizens under equal conditions
- (2) Secondary education in public high schools is free of charge.

- Right to free transport (Article 41-a)

(1) The student shall be entitled to organized or free transport if the place of residence is at distance of at least two and a half kilometers from the nearest school.

(2) Students with disabilities and their assistants shall be entitled to free accessible transport regardless of the distance and the accessibility of their place of residence to the secondary school.

No tuition fees, exam fees, schools supplies, transport costs or compulsory levies on parents are charged.

The Law on Textbooks in Primary and Secondary Education stipulates the following:

Textbooks in primary and secondary schools are free of charge for all students (Article 6)

- ☐ **No: What are the measures your government intends to take to ensure free secondary education?**

Is secondary education (middle/high) compulsory in your country? X Yes ☐ No

- **Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:**

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

Secondary Education is compulsory and lasts from 2 to 4 years. VET Education can last from 2 to 4 years, while general secondary education lasts 4 years.

The age of enrollment is 14/15 years depending on the age of enrollment in the primary education (5 or 6 years) which lasts for nine years

The Law on Secondary Education stipulates the following:

Article 3

(1) Secondary education is compulsory for all citizens under equal conditions

Net enrollment rate in secondary education for the school year 2017/2018 is 69.63% (female 68.66%). Source: State Statistical Office
http://www.stat.gov.mk/PrikaziPoslednaPublikacija_en.aspx?id=42

- **Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:**

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

X Yes ☐ No

- **Please provide reference to the relevant laws and provisions:**

The Labor Law (Article 18) stipulates the following:

A young person shall be considered any person who may conclude an employment contract, who is at least 15 years of age and under 18 years of age and who is not included in compulsory education, to perform work that is not harmful to his health and security.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰.

- **Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹¹ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):**

- X Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- X Regulations prohibit discrimination in higher education, including technical and vocational education and training
- X Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training
- ☐ Other:

The Law on Higher Education stipulates the following:

Basic Principles of Higher Education (Article 3)

Respect for human rights and freedoms and ensuring the principles of equality and protection against discrimination;

Objectives of Higher Education (Article 4)

Respecting the human rights and freedoms and ensuring the principles of equality and non-discrimination

Accessibility of Higher Education (Article 6)

(1) Nationals of the Republic of North Macedonia shall have the right under equal conditions to education in higher education institutions.

(2) Foreign nationals may, under the principle of reciprocity, receive education in higher education institutions in the Republic of North Macedonia under equal conditions as the nationals.

(3) Foreign nationals, without applying the principle of reciprocity, may receive education in higher education institutions in the Republic of North Macedonia under conditions more closely defined by the higher education institution.

(4) Stateless persons shall have the right to higher education under equal conditions as the nationals of the Republic of North Macedonia.

Student Rights and Responsibilities (Article 27)

Students of all levels of higher education that have no parents, or are blind, deaf, first- or second-category disabled, mother with children under six years of age and hospitalised Students shall have the right to special conveniences stipulated in the Statute of the higher education institution.

Exemption from Co-payment (Article 128)

(1) The public higher education institution shall not charge co-payment to the following:

- Persons without parents under the age of 26, if they are unemployed;

- Persons with disabilities, in accordance with a Decree adopted by the Government, upon a proposal of the National Council;
- Disabled war veterans;
- Persons raised in foster care homes for abandoned children, if they are unemployed; and
- Other persons, as defined in the Government Decree adopted upon a proposal of the National Council.
(2) The co-payment funds for these persons shall be covered by the Budget of Republic of North Macedonia.

Study Enrolment Method (Article 149)

The university, or the autonomous higher vocational school, determines the procedure for selection of candidates for enrolment in a manner that guarantees equality of all candidates irrespective of race, colour, gender, language, religion, political or other belief, ethnic, national or social origin, property, birth, social status, disability, sexual orientation and age.

Gender related statistics:

In the academic year 2018/2019 the gross enrolment rate was 34.26% (female students 40.07%). The net enrolment rate was 26.49% (female students 31.46%)

Source: State Statistical Office

http://www.stat.gov.mk/PrikaziPoslednaPublikacija_en.aspx?id=38

Out of the total number of graduated students in the first cycle of studies in 2019 (7.874), 57.8% (or 4.549) are female students

Out of the total number of graduated students in the second cycle of studies (masters and specialists) in 2019 (1.736), 60.1% (or 1.044) are female students

Out of the total number of graduated students in the third cycle of studies (PhD) in 2019 (204), 59.8% (or 122) are female students

Source: State Statistical Office

<http://www.stat.gov.mk/OblastOpsto.aspx?id=5>

•• Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- >> *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
- >> *Non-differential treatment, including of foreign students*

Accessibility of Higher Education (Article 6 from the Law on Higher Education)

(1) Nationals of the Republic of North Macedonia shall have the right under equal

conditions to education in higher education institutions.

(2) Foreign nationals may, under the principle of reciprocity, receive education in higher education institutions in the Republic of North Macedonia under equal conditions as the nationals.

(3) Foreign nationals, without applying the principle of reciprocity, may receive education in higher education institutions in the Republic of North Macedonia under conditions more closely defined by the higher education institution.

(4) Stateless persons shall have the right to higher education under equal conditions as the nationals of the Republic of North Macedonia.

Study Enrolment Method (Article 149 from the Law on Higher Education)

The university, or the autonomous higher vocational school, determines the procedure for selection of candidates for enrolment in a manner that guarantees equality of all candidates irrespective of race, colour, gender, language, religion, political or other belief, ethnic, national or social origin, property, birth, social status, disability, sexual orientation and age.

- **Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):**

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

- ☐ Higher education is generally free of charge

9 Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

10 Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

11 See: Article/Paragraph 1(1).

- X Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- X Higher education is accessible through financial incentives and scholarships
- X Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☐ Other:

Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience:

Enrolment on studies is carried out on the basis of a public competition announced by the university, or the autonomous higher vocational school that conducts the studies at least five months prior to the commencement of the teaching.

The university, or the autonomous higher vocational school, determines the procedure for selection of candidates for enrolment in a manner that guarantees equality of all candidates irrespective of race, colour, gender, language, religion, political or other belief, ethnic, national or social origin, property, birth, social status, disability, sexual orientation and age. (Article 149)

Higher education is accessible through financial incentives and scholarships:

Each academic year, Ministry of Education and Science grants several types of scholarship for students:

- Scholarships for Socially Disadvantaged Students
- Scholarships for STEM Studies
- Scholarships for Roma Students
- Scholarships for Talented Students

Placement in student dormitories (co-financing):

The Ministry of Education and Science for students who are accommodated in a state or private dormitory participates in the price for accommodation and food up to 50% of the determined price, and the difference to the total price is paid by the student.

Higher education is accessible through positive or affirmative action measures:

See exemption from Co-payment (in details described below, article 128)

Students of all levels of higher education that have no parents, or are blind, deaf, first- or second-category disabled, mother with children under six years of age and hospitalised Students shall have the right to special conveniences stipulated in the Statute of the higher education institution. (Article 27)

- **Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.**

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

Higher education is not free of charge. However the public universities are funded by the State, and the students co-pay.

Higher Education Funding (Article 123)

(1) The funding for public university, that is, for autonomous higher education schools, and studies of public interest shall be allocated from the Budget of Republic of North Macedonia and other sources defined by law.

(3) Starting point for funding of higher education institutions shall be the annual financial plans of the higher education institutions.

(4) The financial plans of higher education institutions shall include the following:

1. Number of students to be enrolled with co-payment and tuition,
2. Actual costs for the implementation of each study programme in accordance with its specificities,
3. Current operating costs of the institution, and
4. Investment and development costs.

(5) The current costs (utilities, maintenance, equipment and supplies for implementation of the study programmes and for operation of the higher education institution) of public higher education institutions shall be fully covered from the Budget of Republic of North Macedonia.

Higher education institutions may obtain funding from other sources such as Co-payments; Tuition fees

Co-payment (Article 126)

A public university may, upon proposal of a university unit, introduce co-payment in the costs of studying for students, whose education is financed from the Budget of Republic of North Macedonia.

Tuition (Article 127)

A public university or a public autonomous higher vocational school, within the number of students determined by the enrolment competition, may introduce tuition fees for students, whose education is not financed by the Budget of Republic of North Macedonia.

Exemption from Co-payment (Article 128)

(1) The public higher education institution shall not charge co-payment to the following:

- Persons without parents under the age of 26, if they are unemployed;
- Persons with disabilities, in accordance with a Decree adopted by the Government, upon a proposal of the National Council;
- Disabled war veterans;
- Persons raised in foster care homes for abandoned children, if they are unemployed; and
- Other persons, as defined in the Government Decree adopted upon a proposal of the National Council.

(2) The co-payment funds for these persons shall be covered by the Budget of Republic of North Macedonia.

In the academic year 2018/2019 the gross enrolment rate was 34.26% (female students 40.07%). The net enrolment rate was 26.49% (female students 31.46%)

Source: State Statistical Office

http://www.stat.gov.mk/PrikaziPoslednaPublikacija_en.aspx?id=38

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

•• Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- X Provision of education for persons who have not received or completed the whole period of their primary education
- X Provision of literacy programmes
- X Provision of appropriate learning and life-skills programmes
- X Provision of free of charge learning opportunities
- X Provision of flexible learning pathways

X Provision of professional training and qualifications

☐ Other:

•• Please elaborate further on the measures taken:

The Law on Adult Education and its by-laws regulate the adult education system in the Republic of North Macedonia.

According to the Law (Article 3):

1. Formal adult education is an institutionalized education that is implemented in state and private institutions, following appropriate curricula.

Adult formal education includes:

- primary education of adults,
- secondary education for adults, vocational training, vocational education for occupations, technical education and post-secondary education for adults, as well as retraining and additional training and
- higher education of adults.

2. Non-formal adult education means organized learning processes aimed at enabling adults to work, for various social activities or personal development.

3. Informal learning of adults means activities in which adults accept attitudes and positive values, skills and knowledge from everyday experiences and other influences from their environment.

In December 2019, amendments to the Law on Adult Education were adopted by the Government (the amendments are not yet adopted by the Parliament due to the election process in the country). The amendments regulate the procedure of validation of informal and non-formal learning of adults.

In 2019 a Concept for Primary Education for Adults was developed and adopted by the Center for Adult Education (State Institution) in close cooperation with the UNDP Office.

There is a special primary school for adults in the country offering literacy programmes for adults (free of charge). The literacy programmes are developed by the Bureau for Development of Education and adopted by the Minister of Education and Science. The costs for the education process are covered by the Ministry of Education and Science. The programmes offer flexible learning.

In 2018-2020 new literacy programmes have been developed in close cooperation with the UNDP office in the country and they are in the process of piloting (all programmes are available on-line on Macedonian and Albanian language on the following link: <http://npv.mk>)

The Center for Adult Education offers as well programmes for formal secondary education (free of charge) for adults who have not completed secondary education in close cooperation with the municipalities mostly for VET education, depending of

labor market needs of the concrete municipality (leading to a professional qualification)

The Centar for Adult Education and the Ministry of Education and Science are responsible institutions for the process of certification and accreditation of the private providers of adults' education.

Through the *Operational Plan for active employment programs and measures and services on the labor market* adopted by the Government each year, and implemented by the National Agency for Employment, the Agency covers the costs for professional training and qualifications and appropriate learning and life-skills programmes for unemployed adults. The programmes/trainings are offered by the accredited private providers of adult education and the costs are covered by the Agency.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to "build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all".

•• Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/ mentioned):

- X Establishment of minimum norms and standards in education
- X Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- X Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

•• Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

Establishment of minimum norms and standards in education:

Article 23 of the Law on Primary Education stipulates that the Minister for Education and Science, on proposal by the Bureau for Development of Education,

determines the norms and standards for adequate school premises, equipment and teaching aids.

Primary school may be founded, provided:

- there is sufficient number of students to form at least two classes for first to ninth grade,
- there is adequate teaching staff,
- there are adequate school premises, equipment and teaching aids according to established norms and standards and
- required funding is provided

Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT):

There are as well norms and standards for teaching and other professional staff in schools. In the Republic of North Macedonia all public primary and secondary schools must follow the same national curricula (prepared by the Bureau and adopted by the Minister) and follow the same norms and standards in teaching. The learning materials (textbook) are as well provided by the Ministry for all schools. The learner/teacher ratios are more or less equal to all schools (in average number of students per teacher in primary education is 11 and in secondary education is 10). The Ministry gives approval to municipality (schools) for hiring new teachers based on analysis and assessment of the need (upon request of the school through the municipality)

The infrastructure is responsibility of the municipality. However each year the Ministry prepares program for building and reconstruction of primary and secondary schools, from the State Budget (Budget of the Ministry). The Ministry makes analysis of the needs of the school and gives priorities to the schools that are most in need (rural areas, old schools etc.).

The municipality and the Ministry follow the same regulations and standards regarding the school infrastructure.

The Ministry in cooperation with the USAID office in the country prepared Guidelines for maintaining school buildings for all schools. The Guidelines are available on-line on the Ministry's web page

<http://www.mon.gov.mk/index.php/2014-07-23-14-03-24/vesti-i-nastani/709-priracnici-rabotna-verzija>

Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools):

Article 5 of the Law on Primary Education stipulates: "Staff in the primary schools shall be obligated to promote equality and fairness among all students and to actively confront all forms of discrimination and violence."

Article 49 of the Law stipulates that “The annual work program of the school shall also include a plan with regard to the following:

- promotion of students’ wellbeing, protection from violence, abuse and neglect and prevention from discrimination,

Article 66 of the Law refers to *Prevention of violence against students*:

(1) School director shall be obligated to report to the competent institutions, specified by law, any form of violence, abuse or neglect against a student by another student, parent i.e. guardian, teacher, professional associate or any other staff member in the school.

(2) The procedure for reporting and protecting a student-victim from any form of violence, abuse and neglect shall be specified in a bylaw.

(3) The Minister, on proposal by the Bureau, shall adopt the bylaw from paragraph (2) of this Article.

According to the Article 76 of the Law on Primary Education and Article 58-a of the Law on Secondary Education parent i.e. guardian is referred to counselling, if a student takes part in various forms of violence.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

•• **Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):**

- X Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- X Initial training and continuous professional development is provided
- X Minimum standards and qualifications are required for the teaching profession
- X Measures taken to strengthen the social status and attractiveness of the teaching profession
- X Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

•• **Please briefly elaborate further on the measures taken:**

Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels):

Teaching is a relatively well-respected profession in North Macedonia. Teacher salaries compare favourably with average salaries nationally and there is strong demand to enter the profession (OECD Reviews of Evaluation and Assessment in Education North Macedonia, 2019.

<https://www.oecd.org/countries/republicofnorthmacedonia/oecd-reviews-of-evaluation-and-assessment-in-education-north-macedonia-079fe34c-en.htm>

In the period 2017-2019 the salaries of the teachers have been increased for more than 21.2 % (in primary and secondary schools) and more than 15% in higher education institutions.

Initial training and continuous professional development is provided:

Initial trainings of teachers are organized by the higher education institutions for teachers. All teachers in the country must have at least diploma for undergraduate studies (4 years or 240 ECTS). Continuous professional development of teachers is provided by the Bureau for Development of Education based on Annual programme (prepared by the Bureau and adopted by the Minister).

According to the Article 26 of the Law on Teachers and Associates in Primary and Secondary Schools. "Professional development of teachers shall be carried out through accredited training programs, through projects approved by the Ministry,

internal professional development in schools, inter-school learning teams, and through individual forms of learning.”

Article 27 of the Law stipulates the following:

- (1) Teachers shall be required to devote at least 60 hours of professional development training over the course of three academic years.
- (2) Within the framework of training indicated in paragraph (1) of this article, no less than 40 hours shall be in accredited training programs.
- (3) Funding for the training indicated in paragraph (2) of this article shall be provided from the budget of the Bureau, local governments, and through education projects approved by the Ministry.
- (4) Accreditation of training programs indicated in paragraph (2) of this article shall be conducted in accordance with the Law on the Bureau for Development of Education.
- (5) Each teacher shall undergo 20 hours of training in a three-year period for priority programs designated by the Minister and funded from the Bureau budget.

Each teacher creates a personal plan for professional development for each academic year, based on self-evaluation of professional competences, results of integral evaluation and reports from visits by the school principal, advisors from the Bureau, the Center, and the State Education Inspectorate. The plan has to be approved by the school principal based on a proposal from the professional development team in the school. The professional development team of the school is composed of the coordinators of professional subject teams of teachers in the school, principal, and professional associate in the school.

Minimum standards and qualifications are required for the teaching profession:

According to the Article 3 of the Law on Teachers and Associates in Primary and Secondary Schools

(1) The position of teacher in a primary or secondary school may be held by a person who:

- has completed at least four years of relevant higher education in accordance with the norms established in the curriculum, and has acquired at least 240 ECTS.
- qualifications acquired by teachers for the profession of teacher in primary or secondary schools belong at the VI A level of the Macedonian Qualifications Framework and correspond to level VI of the European Framework for Higher Education Qualifications.
- has passed a professional exam after completing traineeship,
- is a citizen of the Republic of North Macedonia,
- knows the Macedonian language and its Cyrillic script, as well as the language and script in which instruction/teaching would take place.

(2) In exception to paragraph (1) line item 3 of this article, a teacher in courses being taught in a foreign language may be a foreign citizen with appropriate higher education and knowledge of the language of instruction, subject to approval by the Ministry of Education and Science (hereinafter: Ministry).

(3) In exception to paragraph (1) line item 2 of this article, a teacher in a

primary or secondary school may also be a person who has not passed a professional exam, only until the end of the current academic year and under mentorship of a mentor-teacher designated by the school.

Measures taken to strengthen the social status and attractiveness of the teaching profession:

According to the OECD Reviews of Evaluation and Assessment in Education North Macedonia, 2019, (mentioned above) teaching is a relatively well-respected profession in North Macedonia and there is strong demand to enter the profession.

A campaign for further strengthening of the social status of the teacher profession is underway (in cooperation with the Unicef office in the country), which has been postponed at the moment due to the election process in the country.

Performance monitoring systems:

Article 19 of the Law on Teachers and Associates in Primary and Secondary Schools stipulates the following:

- (1) The work of the teachers shall be monitored by the school principal and the Bureau for Development of Education, as well as the Center for VET Education within its domain of competence.
- (2) For teachers who fail to demonstrate satisfactory results in implementing the education/upbringing process, or who substantially violate the standards of professional conduct, the Bureau, the Center, the parents council, or the State Education Inspectorate, shall submit an initiative to the school board for official review of the teacher's work.
- (3) The standards of professional conduct indicated in paragraph (2) of this article shall be determined by the Minister, based on a proposal by the Bureau.
- (4) If the reasons for unsatisfactory results are not due to objective circumstances in the school or organization of the work in the school, the school board shall enact a decision to assign additional professional assistance to the teacher.

Article 131 of the Law on Primary Education regulates as well monitoring and appraisal of teachers' work:

- (1) The monitoring and appraisal of teachers' work is undertaken in the school by the school director, as well as by the Bureau.
- (2) Monitoring and appraisal shall include the quality of work and achievement of competencies and standards by teachers. Based on monitoring and appraisal findings, the teacher shall receive a report with feedback and guidelines for future work, which is kept in the teacher's file. Reports on monitoring and appraisal of teachers shall be used to improve the work of the school and for career progression of teachers.
- (3) The Minister, on proposal by the Bureau, shall determine the manner of monitoring and appraisal of teachers.

Measures taken to increase women in leadership positions in education:

Even though no concrete measures have been undertaken to increase women in leadership positions (head of sector/units) in education out of 41 leadership positions within the Ministry of Education and Science 30 are females.

Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: **Has your government addressed this issue?**

☐ Yes

☐ No

X No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and

¹² Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- **Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/ mentioned):**

- X Curriculum includes human rights education
- X Educational and/or extracurricular activities are organized on human rights education
- X Other:

There is a special subject in the national curriculum for primary (8th and 9th grade) and secondary education (1st year): 'Civic Education'. Even though human rights education was part of the curriculum of the subject Civic Education for years, the curriculum was revised in 2017/2018 and the education on human rights was strengthen even more.

In 2020 a new Concept for Civic Education in Primary Education was adopted. Human rights education is essential part of the Concept.

Concept for extracurricular activities was adopted as well in 2020.

<https://www.bro.gov.mk/wp-content/uploads/2020/06/Koncepcija-za-vonnastavni-aktivnosti-2020-1.pdf>. The concept for extracurricular activities covers lot of activities regarding the human rights education such as debates, public activities, student clubs...

In 2019 all schools in the country took part of the World Largest Lesson marking the 30-anniversary of the Convention on the Rights of the Child. A special lesson was dedicated to the Sustainable Goals and children's right.

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- **Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?**

- X Yes ☐ No

- **Please provide a brief description:**

In Primary Education according to the Constitutional Law no private schools can be established.

The Law on child protection regulates the establishment and functioning of private kindergartens and ECD centres.

The Law on Secondary Education regulates the procedure for establishment and functioning of private high schools.

The Law on Higher Education regulates the procedure for establishment and functioning of private universities and higher education institution.

- **Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹³ explicitly apply to private educational institutions?**

X Yes ☐ No

- **Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:**

The provisions prohibiting discrimination in the Laws for primary, secondary and higher education refer to all schools in the country: public and private schools.

¹³ See: Article/Paragraph 1(1).

- **Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?**

☐ Yes ☐ No

According to the Laws on primary and secondary education “Partisan and religious organization and activity, as well as any display of partisan and religious insignia in a school is prohibited.”

In the 6th grade of primary education the pupil has a right to choose an elective subject between these 3 subjects: “Ethics of religions”, “Getting acquainted with religions” or “Classical Culture in the European Civilisation”.

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

•• **Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):**

- X Constitutional laws and/or legislation protect the right to education of national minorities
- X Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- X Curriculum is adapted to national minority needs
- X Teachers are trained to adapt to national minority needs

☐ Other:

•• **Please provide a brief description of the provisions:**

Article 48 of the Constitutional Law of the country stipulates: “Members of nationalities have a right freely to express, foster and develop their identity and national attributes. The Republic guarantees the protection of the ethnic, cultural, linguistic and religious identity of the nationalities. Members of the nationalities have the right to establish institutions for culture and art, as well as scholarly and other associations for the expression, fostering and development of their identity. Members of the nationalities have the right to instruction in their language in primary and secondary education, as determined by law. In schools where education is carried out in the language of a nationality, the Macedonian language is also studied.”

The Laws on Primary and Secondary Education stipulates:

(1) The educational work in a school shall be conducted in the Macedonian

language and its Cyrillic alphabet.

(2) For students who are members of the communities whose language of instruction is other than the Macedonian language and its Cyrillic alphabet, the educational work shall be conducted in the language and alphabet of the respective community.

(3) Studying the Macedonian language and its Cyrillic alphabet shall be compulsory for the students from paragraph (2) of this Article.

The educational process in the Republic of North Macedonia is conducted in 5 languages: Macedonian, Albanian, Serbian, Turkish and Bosnian (in primary education) and in 4 languages: Macedonian, Albanian, Serbian and Turkish (in secondary education).

National curriculum is translated to all languages and adapted to national minority needs

Besides this, there are elective subjects: Language and Culture of Vlachs, Language and Culture of Roma, Language and Culture of Bosnians

There is a special department within the Ministry of Political System and Inter-Community Relations, which is responsible for developing the education of the languages of the national minorities

•• **As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:**

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

The educational process in the Republic of North Macedonia is conducted in 5 languages: Macedonian, Albanian, Serbian, Turkish and Bosnian (in primary education) and in 4 languages: Macedonian, Albanian, Serbian and Turkish (in secondary education). National curriculum is translated to all languages and adapted to national minority needs. Besides this, there are elective subjects: Language and Culture of Vlachs, Language and Culture of Roma, Language and Culture of Bosnians

A lot of schools in the country are multilingual schools, offering two or more languages of instruction

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/ Recommendation. However, the Convention and Recommendation call on states to

eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

- **Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.**

Law on Primary Education

Education of children who are foreign citizens or stateless children (Article 13)

(1) Children who are foreign citizens or stateless children, children refugees, asylum seekers, children with recognized refugee status, children under subsidiary protection and children under temporary protection and have residence in Republic of North Macedonia shall be entitled to primary education under equal conditions as the children who are citizens of the Republic of North Macedonia.

(2) Learning of the Macedonian language and its Cyrillic alphabet and support for compensating the knowledge in certain subjects shall be organized for the children from paragraph (1) of this Article, for a period of at least one year according to programs designed by the Bureau and approved by the Minister.

Law on Secondary Education

Article 5

Foreign nationals and stateless persons can obtain secondary education, in a manner and under conditions determined by this Law.

The Law on Asylum and Temporary Protection, among other rights, guarantees the asylum seekers the right to education in compliance with the regulations for primary and secondary education.

- **Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):**

☒ Inclusion in mainstream education

☒ Provision of language courses

☐ Specific training for educational staff

☐ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance

- ☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- X Non-formal and/or alternative education programmes
- ☐ Financial support
- ☐ Other innovative measures:

•• **Please briefly elaborate further on the measures taken:**

In September 2016, the Ministry of Labor and Social Policy passed the Standard Operative Procedures for implementing educational activities for children and youth for 2016/2017.

UNICEF, in collaboration with the Ministry of Labor and Social Policy and the Ministry of Education and Science, adapted the national curriculum for pre-primary education and the curriculum for the following school subjects: mathematics, science, civic society, information technology and languages (German, English and Macedonian).

By deporting the larger group of refugees from the RTC Tabanovce, that took place on February 9th 2017, which included 24 children, the education program in this center gradually ended due to the decreasing number of children. With the new events, the focus in the RTC Tabanovce was put on work with the adolescents when staff trainings were organized, again by UNICEF.

<https://myla.org.mk/wp-content/uploads/2018/03/UNICEF-Access-to-education-EN-FINAL-digital-1.pdf>

14 Articles/Paragraphs 1 and 3.

15 Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

III. METHODS USED TO DRAW THE ATTENTION OF THE VARIOUS AUTHORITIES IN THE COUNTRY TO THE INSTRUMENTS AND TO REMOVE THE OBSTACLES ENCOUNTERED

1. Challenges and obstacles

1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/ Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☐ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

Although Republic of North Macedonia has a procedure for refugees' access to integration in practice, there are several technical and substantive challenges, especially for the education of refugee children, asylum seekers, and children with recognized refugee status, children under subsidiary protection, children under temporary protection and stateless children. In the provisions of the Laws on Primary and Secondary Education, stateless persons have the right to request notification of certificate; meanwhile they are obliged, among the other documents, to submit their birth certificate and proof of citizenship.

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

Macedonia's curriculum is very dense, which creates a rigid structure. Given that Macedonian students already receive among the least instructional time of all PISA-participating countries, teachers are obliged to rapidly cover lots of material in very little time. This creates little room for flexibility if teachers wish to slow down to help students who are struggling. However, data collected from principals as part of PISA shows that schools in North Macedonia have comparatively little flexibility with respect to deciding how instructional time should be allocated

(OECD Reviews of Evaluation and Assessment in Education North Macedonia, 2019. <https://www.oecd.org/countries/republicofnorthmacedonia/oecd-reviews-of-evaluation-and-assessment-in-education-north-macedonia-079fe34c-en.htm>)

- ❑ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/ inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

With decentralisation, two important tasks have been delegated to municipalities - resource allocation to schools and staff recruitment. Execution of these tasks, however, is generally conducted with little formal oversight. Municipal governments create their own school funding schemes and have their own criteria for staffing schools, but these procedures are not reviewed at the central level. Without a strong accountability mechanism, the MoES cannot be fully aware of what municipalities are doing and if they are acting in the best interests of students. International evidence highlights the risks of decentralisation if local political dynamics are able to undermine accountability; local governments have weak capacity or weak incentives to ensure good performance. These risks are apparent in North Macedonia

(OECD Reviews of Evaluation and Assessment in Education North Macedonia, 2019. <https://www.oecd.org/countries/republicofnorthmacedonia/oecd-reviews-of-evaluation-and-assessment-in-education-north-macedonia-079fe34c-en.htm>)

The State Statistical Office (SSO) has started to align collection with international standards set by the joint UNESCO, OECD and EUROSTAT data collection. However, international reporting of North Macedonia's data reveals key gaps, notably on education expenditure, suggesting incomplete national administrative data.

(OECD Reviews of Evaluation and Assessment in Education North Macedonia, 2019. <https://www.oecd.org/countries/republicofnorthmacedonia/oecd-reviews-of-evaluation-and-assessment-in-education-north-macedonia-079fe34c-en.htm>)

- ❑ Other:

1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

The new Law on Primary Education (adopted in August 2019), stipulates

Education of children who are foreign citizens or stateless children (Article 13)

(1) Children who are foreign citizens or stateless children, children refugees, asylum seekers, children with recognized refugee status, children under subsidiary protection and children under temporary protection and have residence in Republic of North Macedonia shall be entitled to primary education under equal conditions as the children who are citizens of the Republic of North Macedonia.

(2) Learning of the Macedonian language and its Cyrillic alphabet and support for compensating the knowledge in certain subjects shall be organized for the children from paragraph (1) of this Article, for a period of at least one year according to programs designed by the Bureau and approved by the Minister.

Curriculum and programs (Article 30)

The Minister, on proposal by the Bureau, shall establish the national standards for students in primary education, based on the competencies that students should acquire and adopt at the end of their primary education. National standards for students in primary education shall determine the first level in the National framework of qualifications.

After establishing the national standards for students in primary education, the curricula will be revised according to the OECD recommendation.

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

•• Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- X Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

☐ Other: